

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 2, 2022, A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent).

The claimant states that the respondent, (the claimant's brother), has made unauthorized use of the recording of the trial held before the Court of First Instance No. X of Oviedo, as he published the recording of the trial on November 19, 2014, through the YouTube website and from his personal profile, in which the claimant and the respondent were the defendant and plaintiff, respectively, as a result of a legal dispute over their parents' inheritance.

As the title of such publication, he indicates "The Lies of ***TITLE.1".

The video lasts 44:33 minutes, has been published on that website for over 8 years, and has more than 110 views.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on February 2, 2023, for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on February 13, 2023, as evidenced by the acknowledgment of receipt in the file. On March 8, 2023, this Agency received a response indicating that the respondent was provided with the CD containing the recording by the court and was informed that it contained public information.

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However, the respondent states that he has attempted to remove the video from YouTube but has been unable to do so.

THIRD: On March 2, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On June 7, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.b) of the GDPR, classified in Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which, in summary, he stated that he was unaware that the video had been uploaded to the YouTube platform, nor did he know that a channel had been created in his name, nor does he know who the material author of all this is.

He also claims that he is unaware if his identity has been impersonated or if someone has accessed his copy of the video or that of the other parties in the procedure and used it, but in any case, he never gave his consent to such actions nor was he aware of them, having learned about them as a result of the present sanctioning procedure.

As soon as he was informed of the situation, and despite not having any information regarding that

YouTube channel, as it is not his, he sought professional help to have it removed, as he certainly has no interest in having his image, data, and family situation exposed to the public, being informed that since it was not created with his phone or email, he cannot order its immediate removal.

Regarding the image and voice of the participants in the trial that appear in the recording, its viewing allows for the observation that it is of such low quality that it is impossible to recognize anyone.

The respondent points out that the trial is a public act, so there are hardly any expectations of privacy. He also notes that the video in question has had minimal dissemination, as after several years it has only had 110 views.

SIXTH: On November 27, 2023, the Spanish Agency for Data Protection requested GOOGLE SPAIN to provide this Agency with information about who is the owner of the email address that uploaded the video titled "The Lies of ***TITLE.1" on the YouTube channel.

SEVENTH: The Spanish Agency for Data Protection received a response from GOOGLE SPAIN S.L. on December 27, 2023, indicating that "YouTube is a

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service provided by GOOGLE IRELAND LIMITED, an Irish company with its registered office at Gordon House, Barrow Street, Dublin 4, Ireland, as detailed in the Terms of Service (**URL.1).

GOOGLE IRELAND LIMITED is also responsible for the processing of personal data of YouTube users in the European Economic Area and Switzerland (**URL.2).

The requested information is not under the control or supervision of GOOGLE SPAIN, S.L.

GOOGLE SPAIN, S.L. is not a liaison office of GOOGLE IRELAND LIMITED nor a legal entity representing GOOGLE IRELAND in Europe.

GOOGLE IRELAND LIMITED is not authorized nor has the power to provide the requested information to GOOGLE SPAIN, S.L.

However, the request sent by the AEPD does not mention the service provider entity.

If your request is sent to GOOGLE IRELAND LIMITED via email at ***EMAIL.1, it will be processed as a priority by that company."

EIGHTH: The Spanish Data Protection Agency, on January 26, 2024, sends to the email address indicated by GOOGLE SPAIN, S.L., a letter requesting access to the ownership of the person who uploaded the video on the YouTube channel, which is the subject of this sanctioning procedure, receiving the following response:

"Hello,

Your request relates to services offered by Google LLC including Youtube LLC, a U.S. company organized and operating in the U.S., and governed by U.S. laws.

Google LLC ("Google") must comply with U.S. laws restricting the disclosure of user data. Accordingly, Google typically requires appropriate U.S. legal process be issued before it may disclose user data.

We ask that requests of this nature be directed to Google LLC - Attn: Legal Department, Custodian of Records - at 1600 Amphitheatre Parkway, Mountain View, California, 94043, U.S. and communicated through the proper legal channel.

Google LLC cannot give legal advice. However, there are a variety of options you can explore to obtain the information requested. For instance, you may wish to follow the process outlined in Section 1782 of Title 28 of the United States Code, which is a federal statute that allows a litigant (party) to pursue a legal proceeding outside the United States, and to apply to an American court to obtain evidence for use in the non-U.S. proceeding. You may invoke diplomatic procedures such as Hague Evidence Convention, which provides a mechanism for non-U.S. persons and entities who wish to obtain evidence in the U.S. to do so through the U.S. Department of Justice, Office of International Judicial Assistance in Washington, DC. Additionally, you can find more information about the Office of International Judicial Assistance at ***URL.3.

Google may disclose certain user information in the absence of U.S. legal process if you can provide

valid legal process for such disclosure under the laws of your jurisdiction, and if such disclosure can be made in compliance with U.S. law. We may accept an order signed by a judge or magistrate in your jurisdiction served to Google LLC - Attn: Legal Department, Custodian of Records - at 1600 Amphitheatre Parkway, Mountain View, California, 94043, U.S. via registered mail (not fax or email). If you are able to secure the appropriate legal process within your jurisdiction, Google may produce reasonably available subscriber registration information and/or login IP activity. Upon receipt of legal process, Google will notify the subscriber of the request, so that the subscriber has an opportunity to object. If the subscriber does not indicate that he or she will challenge the legal process and the legal process is otherwise unobjectionable to Google, Google may produce responsive information accordingly.

In addition to properly serving valid legal process to Google LLC, Attn: Legal Department, Custodian of Records - at 1600 Amphitheatre Parkway, Mountain View, California, 94043, U.S., you may also email a courtesy copy to ***URL.4.

We appreciate your understanding and cooperation.”

The translation into Spanish of the response given is as follows:

Hello,

Your request is related to the services offered by Google LLC, including Youtube LLC, a U.S. company organized and operating in the U.S., and governed by U.S. laws.

Google LLC ("Google") must comply with U.S. laws restricting the disclosure of user data. Accordingly, Google typically requires appropriate U.S. legal process be issued before it may disclose user data.

We ask that requests of this nature be directed to Google LLC - Attn: Legal Department, Custodian of Records - at 1600 Amphitheatre Parkway, Mountain View, California, 94043, U.S. and communicated through the proper legal channel.

Google LLC cannot give legal advice. However, there are a variety of options you can explore to obtain the information requested. For instance, you may wish to follow the process outlined in Section 1782 of Title 28 of the United States Code, which is a federal statute that allows a litigant (party) to pursue a legal proceeding outside the United States and to apply to an American court to obtain evidence for use in the non-U.S. proceeding.

You may invoke diplomatic procedures such as the Hague Evidence Convention, which provides a mechanism for non-U.S. persons and entities who wish to obtain evidence in the U.S. to do so through the U.S. Department of Justice, Office of International Judicial Assistance in Washington, DC.

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Americans wishing to obtain evidence in the U.S. may do so through the Office of International Judicial Assistance of the U.S. Department of Justice in Washington, DC. Additionally, more information about the Office of International Judicial Assistance can be found at ***URL.5.

Google may disclose certain user information in the absence of legal process in the U.S. if it can provide a valid legal process for such disclosure under the laws of its jurisdiction, and if such disclosure can be made in compliance with U.S. law. We can accept an order signed by a judge or magistrate from your jurisdiction delivered to Google LLC - Attn: Legal Department, Custodian of Records - at 1600 Amphitheatre Parkway, Mountain View, California, 94043, U.S. by certified mail (no fax or email).

If you can obtain the appropriate legal process within your jurisdiction, Google may provide subscriber registration information and/or reasonably available login IP activity. Once the legal process is received, Google will notify the subscriber of the request so that they have the opportunity to contest it. If the subscriber does not indicate that they will contest the legal process and it is unobjectionable to Google, Google may provide the corresponding information.

In addition to properly notifying a valid legal process to Google LLC, Attn: Legal Department, Custodian of Records - at 1600 Amphitheatre Parkway, Mountain View, California, 94043, U.S., you may also send a courtesy copy by email to ***EMAIL.2.

We appreciate your understanding and cooperation.

Sincerely,

Legal Investigations Support

Google LLC

By providing this response, Google LLC does not waive any jurisdictional or other objections.

NINTH: On February 19, 2024, a resolution proposal was made, proposing that the Director of the Spanish Agency for Data Protection ARCHIVE the sanctioning procedure opened against B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.b) of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €10,000 (ten thousand euros).

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: Since November 19, 2014, a recording of a trial has been published on the YouTube website in which the parties participate as defendant and plaintiff, respectively, as a result of a legal dispute over their parents' inheritance.

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SECOND: In response to the request made by this Agency to GOOGLE to ascertain the ownership of the person who uploaded the video that caused the opening of this sanctioning procedure, GOOGLE SPAIN responded indicating that it is not competent to provide such a response and states the following: "If your request is sent to GOOGLE IRELAND LIMITED via email to ***EMAIL.3, it will be processed on a priority basis by that company."

The Spanish Agency for Data Protection has contacted GOOGLE IRELAND requesting the ownership of the person who uploaded the video in question, receiving a response that GOOGLE is a U.S. company governed by U.S. law and cannot disclose user information in the absence of legal process in the U.S.

Therefore, it has not been possible to ascertain whether the respondent was or was not the person who uploaded the video "The Lies of ***TITLE.1" on the YouTube channel.

LEGAL GROUNDS

I

In accordance with the provisions of Articles 58.2 and 60 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 and 68.2 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In this case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since the reported party retains, among others, the following personal data of natural persons: name and surname, image and voice, among other treatments.

The reported party carries out this activity in its capacity as the data controller, as it determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

For its part, Article 5 of the GDPR regarding "the principles relating to processing" regulates, in section 1.b), the "limitation of purpose."

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III

In the present case, the publication on the YouTube channel of the recording of the oral hearing of a trial in which the claimant and the defendant were the respondent and the claimant, respectively, is reported. This has been ongoing since February 19, 2014, to the present. The recording consists of the trial held before the Court of First Instance No. X of Oviedo, as a result of the inheritance of the parents of the claimant and the defendant.

The claimant states that in this recording, the image and voice of all parties are captured, including those of the professionals representing his brother in this procedure, as well as his own and those of the professionals who represented and defended him, along with that of Your Honor and other members of the Court present at the time of the hearing.

For its part, the defendant states that the CD with the recording was provided to him by the court and was indicated to be public information.

However, he claims that he has tried to delete the video from YouTube but has been unable to do so. This Agency must indicate that this conduct, consisting of the defendant's use of the recording of the trial, would not be in accordance with the law, as Article 236 quinquies of LO 6/1985, of the Judiciary, in its section 3, establishes the following:

"Personal data that the parties know through the process must be processed by them in accordance with the general data protection regulations. This obligation applies to the professionals who represent and assist the parties, as well as to any other participant in the procedure."

Therefore, the disclosure of personal data of the individuals appearing in the recording (name and surname, image, and voice) through YouTube could constitute an infringement attributable to the reported party for violating Article 5.1.b) of the GDPR, which requires that personal data collected have a specific, explicit, and legitimate purpose, and that such data cannot be processed further in a manner incompatible with those purposes. Thus, the personal data collected during the oral hearing of a judicial process cannot be subject to public disclosure in a context different from that for which they were obtained, as doing so would violate the principle of purpose limitation regulated in Article 5.1 b) of the GDPR.

However, the Spanish Agency for Data Protection, upon learning that the defendant cannot remove the video subject to this sanctioning procedure, has decided to request from GOOGLE the identity of the person who uploaded the video on the YouTube channel.

However, this company has denied the AEPD this information, claiming that GOOGLE is a U.S. company and cannot provide such information in the absence of a legal process in the U.S.

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Therefore, the AEPD has been unable to determine whether the defendant was the person who uploaded the video "The Lies of ***TITLE.1" on the YouTube channel, and thus no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

Thus, as it has not been possible to attribute responsibility for the processing as indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to B.B.B., with NIF ***NIF.1, and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this

resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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